

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, April 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28136 against Sergeant Joanna Barletta Tax Registry No. 951523. The case was conferenced on April 9, 2024, before Assistant Deputy Commissioner of Trials Vanessa M. Facio-Lince, who approved the dismissal of the charges in return for the recommended penalty of a Command Discipline Schedule (A) and the forfeiture of five (5) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

DISAPPROVED

Edward A. Caban AUG 15 2024
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28136
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BARLETTA	FIRST JOANNA	M.I. B	COMMAND RISK MITIGATION DIVISION
SHIELD NO. 430	TAX REGISTRY NO. 951523	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Joanna BARLETTA, on or about October 5, 2021, at approximately 2315, while assigned to 090PCT and on duty, in the vicinity of Boerum Street and Bushwick Avenue, Kings County, engage in conduct prejudicial to good order, efficiency, or discipline of the New York City Police Department, in that Sgt. BARLETTA threatened § 87(2)(b) with the use of force by pointing their taser at § 87(2)(b) without Police Necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Joanna BARLETTA, on or about October 5, 2021, at approximately 2315, while assigned to 090PCT and on duty, in the vicinity of Boerum Street and Bushwick Avenue, Kings County, engage in conduct prejudicial to good order, efficiency, or discipline of the New York City Police Department, in that Sgt. BARLETTA threatened § 87(2)(b) with the use of force by pointing their taser at § 87(2)(b) without Police Necessity.	DISMISSED	
3 . Sergeant Joanna BARLETTA, on or about October 5, 2021, at approximately 2315, while assigned to 090PCT and on duty, in the vicinity of Boerum Street and Bushwick Avenue, Kings County, engage in conduct prejudicial to good order, efficiency,	DISMISSED	


FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

8/15/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28136
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BARLETTA	FIRST JOANNA	M.I. B	COMMAND RISK MITIGATION DIVISION
SHIELD NO. 430	TAX REGISTRY NO. 951523	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []	
or discipline of the New York City Police Department, in that Sgt. BARLETTA threatened § 87(2)(b) with the use of force by pointing their taser at § 87(2)(b) without Police Necessity.				

DC [Signature]
FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

8/15/24
DATE



POLICE DEPARTMENT

July 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202106081 (Incident Date: October 5, 2021 on DADS No. 2023-28136)
involving Sergeant Joanna Barletta, Tax No. 951523

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Joanna Barletta, and has determined that her actions do not warrant the proposed penalty.

In this matter, while her officers were taking an individual into custody, Sergeant Barletta pointed her conducted electrical weapon (CEW) at a hostile group of individuals who were moving forward towards her and her officers, and she ordered the group to "get back." After reviewing the facts and circumstances of the case, the Police Commissioner finds that Sergeant Barletta's actions were within guidelines. CCRB incorrectly conflated the procedure governing "use" of a CEW with "display" of a CEW. This is an important distinction, as Department policy permits the "display" of a CEW to gain voluntary compliance as per Patrol Guide Procedure 221-08, Use of Conducted Electrical Weapons.

Therefore, the Police Commissioner intends to direct that Sergeant Barletta receive no disciplinary action.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Mathew Schieffer, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 14, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202106081 (Incident Date: October 5, 2021 on DADS No. 2023-28136) involving Sergeant Joanna Barletta, Tax No. 951523.

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 3, 2024. On April 9, 2024, in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Sergeant Barletta accepted the findings of substantiation contained in the Charges and Specifications in return for a recommendation of a Command Discipline Schedule A and the forfeiture of five (5) vacation days. Deputy Chief Marino stated that after reviewing the CCRB's recommended penalty, you have determined that Sergeant Barletta's actions do not warrant discipline. The CCRB disagrees with this determination.

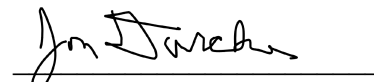
Deputy Chief Marino's letter states that you found Sergeant Barletta's actions to be within guidelines. Furthermore, he states that you believe that the CCRB incorrectly conflated the procedure governing "use" of a CEW with the mere "display" of a CEW and that Sergeant Barletta's "display" of a CEW was compliant with Patrol Guide Procedure 221-08, Use of Conducted Electrical Weapons. As an initial matter, Sergeant Barletta did far more than simply "display" her CEW. As can be clearly seen on the BWC and was admitted to by Sergeant Barletta, Sergeant Barletta pointed her CEW at the civilians and stated, "Step the fuck back or you will get Tased." This goes far beyond the mere "display" of a CEW and is not permitted by Patrol Guide Procedure 221-08.

Paragraph 23 of 221-08 simply states that, where feasible, members of service should issue verbal warnings before using their CEW in order to gain voluntary compliance. This paragraph does not permit the pointing of, and threatened use of, a CEW against civilians in situations where the discharge of a CEW would not be permitted, as was the case here. Nothing

that the civilians had done would have justified the discharge of the CEW and, as a result, Sergeant Barletta was not justified in pointing her CEW at them and threatening to Tase them

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Barletta when she accepted the findings of substantiation and impose upon Sergeant Barletta a Command Discipline A with the forfeiture of five (5) vacation days for this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jon Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board